Showing contexts for: **specific performance property** in Rajeswari vs Shanmugam on 19 November, 2025

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> (f) of the Registration Act the assignment and transfer of the decree relating to immovable property of the value of Rs.

100/- and upwards is compulsorily registrable. Further it was held that the transfer of the right in a decree by way of assignment in immovable **properties** require stamp and registration and if there is a valid assignment of decree by operation of law, then the assignee is entitled to get the decree executed in his favour after issuing a notice to the transferors and the Judgment-Debtors. Further it was held that the non-compliance with provisio regarding notice under Order 21 Rule 16 C.P.C. renders all subsequent proceedings void. The above decision was also rendered in a case of **specific performance** relating to immovable property. Therefore, this court finds that the principles and AIR 2005 AP 524 the decision reported above is squarely applicable to the facts of the present case also. No other decision or the principle laid down in any other case has been pointed out and produced by the respondents so as to reject or over- look the contentions raised by the petitioners herein or the decision reported in 'A.I.R. 2005- Andhra Pradesh- Page 524'. Therefore, this court has no other go except to accept the principles laid down in the above decision.

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22. It will be seen that in case of immovable property of value of one hundred rupees and upwards, transfer of ownership will occur only on the execution of a registered instrument.

23. It is also relevant to notice the fundamental principle that with the passing of a decree of the **specific performance**, the contract between the parties is not extinguished. Section 28 of the **Specific** Relief Act, 1963, statutorily recognizes this principle with regard to contracts for the sale or lease of immovable property, the **specific performance** of which has been decreed. Section 28 reads as under: -

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> "28. Rescission in certain circumstances of contracts for the sale or lease of immovable property, the **specific performance** of which has been decreed.— (1) Where in any suit a decree for **specific performance** of a contract for the sale or lease of immovable property has been made and the purchaser or lessee does not, within the period allowed by the decree or such further period as the court may allow, pay the purchase money or other sum which the court has ordered him to pay, the vendor or lessor may apply in the same suit in which the decree is made, to have the contract rescinded and on such application the court may, by order, rescind the contract either so far as regards the party in default or altogether, as the justice of the case may require.

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28. Thus, a decree for **specific performance** passed on the basis of an agreement to sale or a contract for sale, merely recognizes a claim for **specific performance** of contract, which is capable of being **specific**ally enforced at the instance of a decree-holder. It does not elevate the status of a decree-holder, subsisting prior to passing of such a decree, to that of the owner of the property in question. It does not create any right, title, interest in or charge on the immovable property in favour of a decree-holder. Even in respect of such a decree, the sale would be complete only upon the execution of the sale-deed in favour of the decree- holder either by the vendor/judgment-debtor or through the process of the Court. It is only upon the registration of such sale-deed upon payment of stamp duty under Item 20 of Schedule I of the Stamp Act, that any right, title and interest in such property shall validly pass on to the decree- holder, who is the purchaser of the suit property. Hence, mere

passing a decree for **specific performance** of contract does not result in the transfer of property.